

*La.* Yes, I know that the Laws Spiritual, which have been Law in this Kingdom since the abolishing of Popery, are the King's Laws, and those also that were made before; for the Canons of the Church of *Rome* were no Laws, neither here nor any where else without the Pope's temporal Dominions, farther than Kings and States in their several Dominions respectively did make them so.

*Pb.* I grant that: But you must grant also, that those spiritual Laws were made by Legislators of the spiritual Law; and yet not all Kings and States make Laws by Consent of the Lords and Commons; but our King here is so far bound to their Assents, as he shall judge conducing to the Good and Safety of his People: For Example, if the Lords and Commons should advise him to restore those Laws Spiritual, which in Queen *Mary's* Time were in Force, I think the King were by the Law of Reason obliged, without the Help of any other Law of God, to neglect such Advice.

*La.* I grant you that the King is sole Legislator, but with this Restriction, that if he will not consult with the Lords of Parliament, and hear the Complaints and Informations of the Commons, that are best acquainted with their own Wants, he sinneth against God, though he cannot be compell'd to any thing by his Subjects, by Arms and Force.

*Pb.* We are agreed upon that already; since therefore the King is sole Legislator, I think it also Reason he should be sole supreme Judge.

*La.* There is no Doubt of that; for otherwise there would be no Congruity of Judgments with the Laws. I grant also that he is the supreme Judge over all Persons, and in all Causes, Civil and Ecclesiastical, within his own Dominions, not only by Act of Parliament at this Time, but that he has ever been so by the Common Law: For the Judges of both the Benches have their Offices by the King's Letters Patents; and so (as to Judicature) have the Bishops. Also the Lord Chancellor hath his Office by receiving from the King the Great Seal of *England*; and to say all at once, there is no Magistrate or Commissioner for public Business, neither of Judicature, nor Execution in State or Church, in Peace or War, but he is made so by Authority from the King.

The King is the supreme Judge.

*Pb.* 'Tis true: But perhaps you may think otherwise, when you read such Acts of Parliament, as say, that the King shall have Power and Authority to do this or that, by Virtue of that Act, as *Eliz. c. 1.* That your Highness, your Heirs and Successors, Kings or Queens of this Realm, shall have full Power and Authority, by Virtue of this Act, by Letters Patents under the Great Seal of *England*, to assign, &c. Was it not this Parliament that gave this Authority to the Queen?

*La.* No; for the Statute in this Clause is no more than (as Sir *Edward Coke* useth to speak) an Affirmance of the Common Law; for she being Head of the Church of *England*, might make Commissioners for the deciding of Matters Ecclesiastical, as freely as if she had been Pope; who did, you know, pretend his Right from the Law of God.

*Pb.* We have hitherto spoken of Laws, without considering any thing of the Nature and Essence of a Law; and now unless we define the word Law, we can go no farther without Ambiguity and Fallacy, which will be but Loss of Time; whereas, on the contrary, the Agreement upon our Words will enlighten all we have to say hereafter.

*La.* I do not remember the Definition of Law in any Statute.

*Pb.* I think so: For the Statutes were made by Authority, and not drawn from any other Principles than the Care of the Safety of the People. Statutes are not Philosophy, as is the Common Law and other disputable Arts, but are Commands or Prohibitions, which ought to be obey'd, because assented to by Submission made to the Conqueror here in *England*, and to whosoever had the Sovereign Power in other Commonwealths; so that the positive Laws of all Places are Statutes. The Definition of Law was therefore unnecessary for the Makers of Statutes, though very necessary to them, whose Work it is to teach the Sense of the Law.

*La.* There is an accurate Definition of a Law in *Bracton*, cited by Sir *Ed. Coke*, *Lex est sanctio justa, jubens honesta, & prohibens contraria.*

*Pb.* That is to say, Law is a just Statute, commanding those Things which are honest, and forbidding the contrary. From whence it followeth, that in all Cases it must be the Honesty or Dishonesty that makes the Command a Law, whereas you know that but for the Law we could not (as saith *St. Paul*) have known what is Sin; therefore this Definition is no Ground at all for any farther Discourse of Law. Besides, you know the Rule of Honest and Dishonest refers to Honour, and that it is Justice only, and Injustice, that the Law respecteth. But that which I most except against in this Definition, is, that it supposes that a Statute made by the Sovereign Power of a Nation may be unjust. There may indeed in a Statute Law, made by Men, be found Iniquity, but not Injustice.

*La.* This is somewhat subtil; I pray deal plainly; what is the Difference between Injustice and Iniquity?

*Pb.* I pray you tell me first, what is the Difference between a Court of Justice, and a Court of Equity?

*La.* A Court of Justice is that which hath Cognizance of such Causes as are to be ended by the positive Laws of the Land; and a Court of Equity is that, to which belong such Causes as are to be determined by Equity; that is to say, by the Law of Reason.

*Pb.* You see then that the Difference between Injustice and Iniquity is this; that Injustice is the Transgression of a Statute-Law, and Iniquity the Transgression of the Law of Reason, and that the Judges of that Law are Courts of Justice, because the Breach of the Statute-Law is Iniquity, and Injustice also. But perhaps you mean by Common Law, not the Law itself, but the Manner of proceeding in the Law (as to Matter of Fact) by twelve Men, Freeholders, though those twelve Men are no Court of Equity, nor of Justice, because they determine not what is just or unjust, but only whether it be done or not done; and their Judgment is nothing else but a Confirmation of that which is properly the Judgment of the Witnesses; for to speak exactly, there cannot possibly be any Judge of Fact besides the Witnesses.

*La.* How would you have a Law defined?

*Pb.* Thus; A Law is the Command of him, or them that have the Sovereign Power, given to those that be his or their Subjects, declaring publicly and plainly what every of them may do, and what they must forbear to do.

*La.* Seeing all Judges in all Courts ought to judge according to Equity, which is the Law of Reason, a distinct Court of Equity seemeth to me to be unnecessary, and but a Burthen to the People, since Common Law and Equity are the same Law.

*Pb.* It were so indeed, if Judges could not err; but since they may err, and that the King is not bound to any other Law but that of Equity, it belongs to him alone to give Remedy to them, that by the Ignorance or Corruption of a Judge shall suffer Damage.

*La.* By your Definition of a Law, the King's Proclamation under the Great Seal of *England* is a Law; for it is a Command, and public, and of the Sovereign to his Subjects.

*Pb.* Why not, if he think it necessary for the Good of his Subjects? For this is a Maxim at the Common Law alledged by Sir *Edward Coke* himself, 1 *Inst.* 306. *Quando Lex aliquid concedit, concedere videtur & id per quod devenitur ad illud.* And you know out of the same Author, that divers Kings of *England* have often, to the Petitions in Parliament which they granted, annexed such Exceptions as these, unless there be Necessity; saving our Regality; which I think should be always understood, though they be not expressed; and are understood so by Common Lawyers, who agree that the King may recall any Grant wherein he was deceived.

*La.* Again, whereas you make it of the Essence of a Law to be publicly and plainly declared to the People, I see no Necessity for that. Are not all Subjects bound

bound to take Notice of all Acts of Parliament, when no Act can pass without their Consent?

*Pb.* If you had said that no Act could pass without their Knowledge, then indeed they had been bound to take Notice of them; but none can have Knowledge of them but the Members of the Houses of Parliament, therefore the rest of the People are excused; or else the Knights of the Shires should be bound to furnish People with a sufficient Number of Copies (at the People's Charge) of the Acts of Parliament at their Return into the Country; that every Man may resort to them, and by themselves or Friends, take Notice of what they are obliged to; for otherwise it were impossible they should be obeyed: and that no Man is bound to do a thing impossible, is one of Sir *Edward Coke's* Maxims at the Common Law. I know that most of the Statutes are printed, but it does not appear that every Man is bound to buy the Book of Statutes, nor to search at *Westminster* or at the *Tower*, nor to understand the Language wherein they are for the most part written.

*La.* I grant it proceeds from their own Faults; but no Man can be excused by the Ignorance of the Law of Reason; that is to say, by Ignorance of the Common Law, except Children, Madmen, and Idiots: but you exact such a Notion of the Common Law, as is almost impossible. Is it not enough that they in all Places have a sufficient Number of the Penal Statutes?

*Pb.* Yes, if they have those Penal Statutes near them; but what Reason can you give me why there should not be as many Copies abroad of the Statutes, as there be of the Bible?

*La.* I think it were well that every Man that can read had a Statute Book; for certainly no Knowledge of those Laws, by which Mens Lives and Fortunes can be brought into Danger, can be too much. I find a great Fault in your Definition of Law; which is, that every Law either forbiddeth or commandeth something. 'Tis true, that the Moral Law is always a Command or a Prohibition, or at least implieth it; but in the *Levitical* Law, where it is said, that he that stealeth a Sheep shall restore four-fold; what Command or Prohibition lieth in these Words?

*Pb.* Such Sentences as that are not in themselves general, but Judgments; nevertheless there is in those Words implied a Commandment to the Judge, to cause to be made a four-fold Restitution.

*La.* That's right.

*Pb.* Now define what Justice is, and what Actions and Men are to be called Just.

*La.* Justice is the constant Will of giving to every Man his own; that is to say, of giving to every Man that which is his Right, in such manner as to exclude the Right of all Men else to the same thing. A just Action is that which is not against the Law. A just Man is he that hath a constant Will to live justly; if you require more, I doubt there will no Man living be comprehended within the Definition.

*Pb.* Seeing then that a just Action, according to your Definition, is that which is not against the Law; it is manifest that before there was a Law, there could be no Injustice, and therefore Laws are in their Nature antecedent to Justice and Injustice, and you cannot deny but there must be Law-makers, before there were any Laws, and consequently before there was any Justice; I speak of human Justice; and that Law-makers were before that which you call Own, or Property of Goods, or Lands distinguished by *Meum*, *Tuum*, *Alienum*.

*La.* That must be granted; for without Statute-Laws, all Men have Right to all things; and we have had Experience when our Laws were silenced by Civil War, there was not a Man, that of any Goods could say assuredly they were his own.

*Pb.* You see then that no private Man can claim a Propriety in any Lands, or other Goods, from any Title, from any Man, but the King, or them that have the Sovereign Power; because it is in Virtue of the Sovereignty, that every Man may not enter into, and possess what he pleaseth; and consequently to deny the Sovereign any thing necessary to the sustaining of his sovereign Power, is to destroy the

Propriety